

Item Nos. 01 to 04

(Court No. 1)

BEFORE THE NATIONAL GREEN TRIBUNAL

(By Video Conferencing)

Original Application No. 200/2014
(C.W.P. No. 3727/1985)

M.C. Mehta

Applicant

Versus

Union of India & Ors.

Respondent(s)

WITH

Original Application No. 128/2021

Saurabh Tiwari

Applicant

Versus

Union of India & Ors.

Respondent(s)

WITH

Original Application No. 985/2019

In Re: Water Pollution by Tanneries at Jajmau, Kanpur, Uttar Pradesh

WITH

Original Application No. 986/2019

In Re: Water Pollution at Rania, Kanpur Dehat & Rakhi Mandi, Kanpur Nagar, Uttar Pradesh

Date of hearing: 16.11.2021

**CORAM: HON'BLE MR. JUSTICE ADARSH KUMAR GOEL, CHAIRPERSON
HON'BLE MR. JUSTICE SUDHIR AGARWAL, JUDICIAL MEMBER
HON'BLE DR. NAGIN NANDA, EXPERT MEMBER**

Applicant(s): Ms. Katyayni, Advocate for Applicant in OA 200/2014 and Amicus Curiae in OA Nos. 985 and 986 of 2019
Mr. Saurabhi Tiwari, Applicant in Person in OA 128/2021

Respondent(s): Mr. D.P. Mathuria, Executive Director, NMCG
Mr. Rahul Verma, AAG for the State of Uttarakhand
Ms. Garima Prashad, AAG with Mr. Amit Tiwari, Advocate for the State of UP
Ms. Madhumita Bhattacharjee, Advocate for the State of West Bengal
Mr. Saurabh Jain, Advocate for the State of Jharkhand
Mr. Raj Kumar, Advocate for CPCB

Mr. Pradeep Misra, Advocate for UPPCB
Mr. Mukesh Verma, Advocate for UEPPCB
Mr. I.K. Kapila, Advocate for UP Jal Nigam

ORDER

In continuation of order dated 08.02.2021 in OA 200/2014, we have considered the reports filed by the NMCG, CPCB, Oversight Committee for the State of UP and UP State PCB as well as some of the States on the subject of preventing and remedying pollution of river Ganga.

We have heard Executive Director, NMCG, learned Counsel for the applicant, CPCB and other Counsel who wished to make any submission in the matter.

On consideration we find that the progress is dismal. There is need for stringent remedial action and to consider restructuring of current operational and monitoring mechanism for effectiveness of the mission and accountability of agencies involved in the process. In the light of submissions made and the reports filed, we will consider and pass appropriate order.

Hearing concluded. Order reserved. Order will be uploaded on the website on or before 06.12.2021.

Adarsh Kumar Goel, CP

Sudhir Agarwal, JM

Dr. Nagin Nanda, EM

November 16, 2021
Original Application No. 200/2014
(C.W.P. No. 3727/1985) and connected matters
DV